

of giving the warrant (*e*); and [even under the law prior to the Married Women's Property Act, 1882] the marriage of a *feme* was not an alienation of a *chose en action* to the extent of her equity to a settlement out of it (*f*); but where real estate was held in trust for A. and her assigns for her life, with remainder over, with a proviso, that, if she did anything whereby she might lose the control over the income, the life estate should "cease as fully as it would by her actual decease," and she married, so that the husband obtained the control over the income, the limitation over to the remainderman took effect (*g*). Where the forfeiture is to arise on bankruptcy, no forfeiture is incurred by a bankruptcy which is afterwards annulled, provided the annulment be effected before any beneficial interest could have come to the hands of the assignee (*h*); and where the clause was against "anticipating or otherwise assigning or encumbering" the annual proceeds, and the *cestui que trust* assigned, so far as he lawfully could without forfeiture, the arrears already [*103] *accrued, but not the future income, it was held that the assignment being confined to the arrears was valid (*a*); and a power of attorney to receive the income and a charge upon the income will not be a forfeiture, unless it can be proved that the power of attorney and charge were meant to be applied to future income, and not to be confined to arrears already accrued (*b*); and an assignment in *general* words will not comprise a property which if attempted to be assigned would become forfeited (*c*).

(*e*) *Avison v. Holmes*, 1 J. & H. 530; and see *Barnett v. Blake*, 2 Dr. & Sm. 117; *Montefiore v. Behrens*, 35 Beav. 95.

(*f*) *Bonfield v. Hassell*, 32 Beav. 217.

(*g*) *Craven v. Brady*, 4 L. R. Ch. App. 296. [But see now 45 & 46 Vict. c. 75.]

(*h*) *White v. Chitty*, 1 L. R. Eq. 372. This case went to the verge, but in *Lloyd v. Lloyd*, 2 L. R. Eq. 722, the Court went even further. See also *Re Parnham's Trust*, 13 L. R. Eq. 413; [as decided by Lord Romilly,

M. R.; and the same case subsequently brought before Sir G. Jessel, M. R. 46 L. J. N. S. Ch. 80, when he came to a decision directly opposed to that of Lord Romilly;] *Trappee v. Meredith*, 9 L. R. Eq. 229; [*Samuel v. Samuel*, 12 Ch. D. 152; *Ancona v. Waddell*, 10 Ch. D. 157; *Hurst v. Hurst*, 21 Ch. D. 278;] *Robertson v. Richardson*, 30 Ch. D. 623.

(*a*) *Re Stulz's Trusts*, 4 De G. M. & G. 404; S. C. 1 Eq. Rep. 334.

(*b*) *Cox v. Bockett*, 35 Beav. 48.

(*c*) *Re Waley's Trust*, 3 Eq. Rep. 380; and see *Fausset v. Carpenter*, 2